

CITY COUNCIL MEETING MINUTES

6:00 PM – January 19, 2016
Cadillac City Hall – 200 N. Lake St. - Cadillac, Michigan 49601

CALL TO ORDER

Mayor Filkins called the City Council meeting to order at approximately 6:00 pm.

PLEDGE OF ALLEGIANCE

ROLL CALL

Council Present:	Spoelman, Wohlfeill, Schippers, Keith, Mayor Filkins
Council Absent:	None
Staff Present:	Peccia, Robert, Dietlin, Golnick, DeWitt, Homier, Wasson

APPROVAL OF AGENDA

Peccia asked that Council consider amending the agenda to add a discussion of the case of Ferris v Cadillac et al. Case No. 1:15-CV-00680-RJJ to the closed session.

2016-010 Approve agenda as amended.

Motion was made by Schippers and supported by Keith to approve the agenda as amended.

Motion unanimously approved.

PUBLIC COMMENTS

There were no public comments.

CONSENT AGENDA

2016-011 Approve consent agenda as presented.

Motion was made by Spoelman and supported by Keith to approve the consent agenda as presented.

Motion unanimously approved.

APPOINTMENTS

A. Recommendation regarding reappointment to the Zoning Board of Appeals.

2016-012 Approve reappointment to the ZBA.

Motion was made by Spoelman and supported by Keith to approve the reappointment of Louis Nichols to the Zoning Board of Appeals for a 3-year term to expire on January 1, 2019.

Motion unanimously approved.

B. Recommendation regarding reappointment to the Zoning Board of Appeals.

2016-013 Approve reappointment to the ZBA.

Motion was made by Schippers and supported by Wohlfeill to approve the reappointment of Shari Ault to the Zoning Board of Appeals for a 3-year term to expire on January 19, 2019.

Motion unanimously approved.

Spoelman noted that Louis Nichols has served on the Zoning Board of Appeals for twenty-four (24) years and Shari Ault has served on the Zoning Board of Appeals for twelve (12) years.

C. Recommendation regarding reappointment to the Courthouse Hill Historic District Commission.

2016-013 Approve reappointment to the HDC.

Motion was made by Keith and supported by Schippers to approve the reappointment Gwen Dubravec to the Courthouse Hill Historic District Commission for a 3-year term to expire on December 31, 2018.

Motion unanimously approved.

D. Recommendation regarding reappointment to the Courthouse Hill Historic District Commission.

2016-014 Approve reappointment to the HDC.

Motion was made by Wohlfeill and supported by Keith to approve the reappointment Mark Snider to the Courthouse Hill Historic District Commission for a 3-year term to expire on December 31, 2018.

Motion unanimously approved.

Mayor Filkins noted that Mark Snider has served on the Courthouse Hill Historic District Commission for ten (10) years.

E. Recommendation regarding appointment to the Board of Review.

2016-014 Approve appointment to the Board of Review.

Motion was made by Keith and supported by Wohlfeill to approve the appointment Art Stevens to the Board of Review as the Third Ward representative for a 2-year term to expire on January 19, 2018.

Spoelman noted she is grateful that Art Stevens has agreed to continue his commitment to the Board of Review.

Motion unanimously approved.

COMMUNICATIONS

- A. Request to display a banner from January 25, 2016 to February 8, 2016; the closure of Linden St. from 9:45 am to 10:15 am on February 6, 2016 for a 5k event, and the closure of City parking lots from 6:00 am to 6:00 pm on February 5-6, 2016 for the North American Snow Festival.

Spoelman asked what parking lot would be available for public use if all of the requested lots were closed for the NASF event.

Peccia explained that the additional parking lot closures are being requested to allow participants to park vehicles and trailers in parking lots rather than parking on the lake due to the thickness of the ice.

Spoelman noted that her primary concern is the closure of the Kenwood Park parking lot.

Discussion ensued regarding the event and the requested closures.

2016-015 Approve banner, street and parking lot closures for the NASF.

Motion was made by Schippers and supported by Wohlfeill to approve the display of a banner from January 25, 2016 to February 8, 2016; the closure of Linden St. between Haynes and Chestnut from 9:45 a.m. to 10:15 a.m. on February 6, 2016; and the closure of the requested City parking lots (except the Kenwood Park parking lot) from 6:00 a.m. to 6:00 p.m. on February 5-6, 2016 for the North American Snow Festival.

Motion unanimously approved.

CITY MANAGER'S REPORT

- A. Request to house pet rabbits.

Peccia stated that Holly Fessler, 4-H leader, who resides at 220 Otsego Place is requesting approval to house up to ten (10) pet rabbits at her residence. He noted that the rabbits will be kept in outdoor hutches during the summer and moved to the garage in the winter months. He added that Section 6-28 of the City Code stipulates that Council approval is required.

Members of the Fessler family discussed their rabbits.

2016-016 Approve request to house pet rabbits.

Motion was made by Keith and supported by Wohlfeill to allow 4-H leader Holly Fessler to house up to ten (10) pet rabbits in small outdoor hutches at her residence located at 200 Otsego Place.

Motion unanimously approved.

B. Consumers Energy Street Light Contract Amendment.

Peccia explained that the amendment removes one (1) light at 411 S. Lake St.; adds one (1) light at the intersection of Leeson Ave. and Cummer St.; and adds one (1) light at the end of N. Simons St. He added that the lights meet the City's street light policy.

2016-017 Approve Consumers Energy Street Light Contract amendment.

Motion was made by Spoelman and supported by Keith to approve the amendment to the Consumers Energy Street Light Contract as presented.

Motion unanimously approved.

C. Recommendation regarding Downtown Sidewalk Cafés.

Peccia noted that the Clam Lake Beer Company and Hermann's European Café have requested approval for sidewalk cafés in 2016. He referenced the site plans provided and noted that there is adequate space for pedestrian traffic. He stated staff recommends approval subject to the following conditions:

- 1) The Cadillac City Code of Ordinance that relates to sidewalk cafes in Section 46-395 is followed which includes a requirement for a site plan and proof of insurance.
- 2) Businesses with a sidewalk café on Mitchell Street/Business US-131 acquire the needed sidewalk café permit through the State of Michigan.

2016-018 Approve Downtown Sidewalk Cafés.

Motion was made by Wohlfeill and supported by Keith to approve the request from Clam Lake Beer Company and Hermann's European Café for sidewalk cafés in 2016 in accordance with the two (2) conditions noted.

Motion unanimously approved.

D. Recommendation regarding extension of purchase authorizations – Water and Sewer Fund.

Peccia explained that in the fall of 2013 City Council awarded the purchase of three (3) commodities and one (1) contractual service on behalf of the Water and Sewer Department. He noted the vendors and the commodities/services provided.

Owen Roberts, Director of Finance, stated that the original bid documents contained a provision to extend the purchase arrangements for up to two (2) years.

2016-019 Approve extension of purchase authorizations – Water and Sewer Fund.

Motion was made by Schippers and supported by Keith to extend the purchase authorization for biosolids injection from Biotech Agronomics, for ferric Chloride from Kemira Water Solutions, for liquid phosphate from Elhorn Engineering, and for liquid chlorine from Alexander Chemical Corporation through December 31, 2017 based on the extension details presented.

Motion unanimously approved.

ADOPTION OF ORDINANCES AND RESOLUTIONS

A. Adopt Resolution Amending the General Appropriations Act for Fiscal Year 2016.

Roberts stated the proposed budget amendment relates to the Rotary Performing Arts Pavilion Project and involves the Capital Projects Trust Fund and the Rotary Park Project Fund. He noted it is being recommended to appropriate \$165,000 out of the Capital Projects Trust Fund to cover the remainder of the costs of the Rotary Pavilion reconstruction. He added that it is also being recommended to appropriate additional funds for construction based on the estimated final cost of the project pursuant to award of construction contract. He stated that the Rotary Club recently committed an additional amount up to \$90,000. As a result of this contribution, the Rotary Club will cover 50% of the total renovation of the Rotary Pavilion area.

Spoelman noted that the Rotary auction will be held in April. She stated that it is the Rotary's largest fundraising event of the year. She added that any support from the community for this auction would be greatly appreciated.

Mayor Filkins asked for an explanation of the cost increase.

Roberts noted that the initial estimates occurred during the last budgeting process. He added the design, engineering, and bids were not finalized at that time.

2016-020 Adopt Resolution Amending the General Appropriations Act for Fiscal Year 2016.

Motion was made by Wohlfeill and supported by Keith to adopt the Resolution Amending the General Appropriations Act for Fiscal Year 2016 as presented.

Motion unanimously approved.

B. Adopt Resolution Opposing Public Act 269.

Peccia noted that recent legislation places a gag order on municipalities, school districts, and other agencies that have the ability to place a referendum question on a ballot. He explained that it eliminates the ability to communicate information to constituencies within the 2-months prior to the election. He added that this can greatly harm the ability for public information regarding a ballot question to be made available.

2016-021 Adopt Resolution Opposing Public Act 269.

Motion was made by Schippers and supported by Keith to adopt the Resolution Opposing Public Act 269 as presented.

Motion unanimously approved

MINUTES OF BOARDS AND COMMISSIONS

- A. The minutes of the Dog Park Advisory Committee meeting held on November 18, 2015 were presented for information only.

PUBLIC COMMENTS

Bo McCurdy mentioned Public Act 269 and stated that he utilizes the MSU Extension website to obtain information on proposals.

GOOD OF THE ORDER

Keith recommended that an update be provided to the public regarding the current drug situation in Cadillac and what is being done to combat it.

Schippers noted the meetings for the Cadillac Community Partnership Program will be held on the second Tuesday of each month at Lincoln School from 7:00-8:00 p.m. She stated the next Mayor's Youth Council meeting will be held at 4:00 p.m. on January 20, 2016 in the Council Chambers. She reminded everyone that snowmobiles are not permitted within the City limits.

Wohlfeill thanked the organizers of the North American Snow Festival (NASF).

Spoelman discussed the membership and purpose of the Lake Mitchell Improvement Board (LMIB). She noted that the next meeting of the LMIB will be held on February 27, 2016 at 10:00 a.m. and will include a public hearing regarding assessment periods and assessment amounts. She stated that a supplemental resolution will be provided to Council at the February 1, 2016 meeting. She added that at the last meeting, the LMIB approved **having their attorney develop** a FOIA policy.

Mayor Filkins asked if minutes from the LMIB were provided to the City.

Spoelman noted that the minutes are posted on the LMIB website.

Mayor Filkins mentioned that the City received another application for the Mayor's Youth Council. She stated that volunteers are needed for the NASF Chili Cook-off. She noted that between the five (5) individuals that were appointed during the meeting there is a total of sixty-six (66) years of volunteer service to the City. She added there are open positions on various boards and commissions.

CLOSED SESSION

Peccia noted that it was appropriate for Council to consider a motion to adjourn to closed session to discuss written confidential legal opinions and to discuss pending litigation with the City attorney in the case of Clam Lake and Haring Township v City of Cadillac, *et al.*; to discuss the case of Arvco Container Corporation v City of Cadillac; and to discuss the case of Ferris v Cadillac *et al.* Case No. 1:15-CV-00680-RJJ the discussion of which in public would have a detrimental effect on the City's trial or settlement strategy in each case.

2016-022 Adjourn to closed session.

Motion was made by Schippers and supported by Keith to adjourn to closed session for the reasons as stated.

Motion unanimously approved.

2016-023 Return to open session.

Motion was made by Wohlfeill and supported by Keith to return to open session.

Motion unanimously approved

Peccia stated it would be appropriate to consider a motion to proceed as discussed with the City Attorney in closed session regarding the written confidential legal opinions and with respect to the case of Clam Lake and Haring Township v City of Cadillac, *et al.*; the case of Arvco Container Corporation v City of Cadillac; and the case of Ferris v Cadillac *et al.*

2016-024 Proceed as discussed in closed session.

Motion was made by Keith and supported by Schippers to proceed as discussed in closed session as stated.

Motion unanimously approved

ADJOURNMENT

Respectfully submitted,

Carla J. Filkins, Mayor

Sandra L. Wasson, City Clerk